

Ajeet Kumar Verma v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 14 May 2024 · 2024:AHC:87046-DB · Writ-C No. 15964 of 2024 · **Writ disposed; 6.5 objection to be decided without pre-deposit**

HEADNOTE

On the licensee's statement, a writ challenging a clause 6.5 pre-deposit demand for a 2023 bill after 2013 permanent disconnection was disposed of without opinion on merits. Respondent No. 3 was directed to decide the 06.02.2024 objection on merits within three weeks without insisting on pre-deposit, the dispute going not only to correctness of the bill but to jurisdiction to bill after PD.

FACTUAL SUMMARY

Ajeet Kumar Verma challenged an order dated 23.02.2024 of respondent No. 3 requiring a deposit under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 as a condition for deciding his objection to a bill. He alleged that supply had been permanently disconnected in 2013, so a 2023 bill was illegal and no pre-deposit could be insisted upon. Counsel for the Electricity Department stated that the objection would be decided without insisting on any pre-deposit.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

6.5 pre-deposit after permanent disconnection

HOLDING

Without expressing any opinion on merits, the writ is disposed of directing respondent No. 3 to decide the petitioner's objection dated 06.02.2024 within three weeks of communication of this order, on merits, without insisting on any clause 6.5 pre-deposit, the dispute relating not only to correctness of the bill but to the very jurisdiction to issue any bill after permanent disconnection. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 2023 BILL WAS ILLEGAL AND WHETHER RESPONDENT NO. 3 HAD JURISDICTION TO ISSUE ANY BILL AFTER THE 2013 PERMANENT DISCONNECTION.

¶ 4